

24VECV01479 24VECV01479

County: los-angeles

Division: Civil Law and Motion

Department: U

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Case Number: 24VECV01479 Hearing Date: August 5, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOSEPH

BIRKNER, an individual, by and through THERESA

PARHAM, his guardian ad litem,

Plaintiff,

vs.

LOS ANGELES

UNIFIED SCHOOL DISTRICT; and DOES 1-100, inclusive,

Defendants.

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CASE

NO: 24VECV01479

[TENTATIVE] RULING

RE: CROSS-COMPLAINANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION

FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION OF ISSUES IN
THE CROSS-COMPLAINT

Dept. U

8:30 a.m.

August 5, 2026

A. BACKGROUND

On Sunday, July 9,
2023, 13-year-old Plaintiff Joseph Birkner ("Birkner") and
two companions climbed a perimeter fence
and trespassed onto a closed middle
school campus for the purpose of skateboarding. During
their excursion, Birkner scaled a caged vending
machine and used the vending machine to
climb onto the school roof. Unfortunately, while
on the roof, the 180-lb. Birkner walked across
a skylight, which broke under Birkner's
weight. Birkner fell through the skylight and

suffered significant injuries.

On April 2, 2024, Birkner, by and through Theresa Parham ("Parham"), his guardian ad litem, filed his original complaint against Defendant Los Angeles Unified School District ("LAUSD").

On May 28, 2024, Birkner filed his first amended complaint against LAUSD, alleging a single cause of action for negligence under Government Code section 835.

On June 28, 2024, LAUSD filed its answer to the FAC.

Also on June 28, 2024, Cross-Complainant LAUSD filed its cross-complaint against Cross-Defendants Birkner and Parham, seeking/alleging: (1) total equitable indemnity; (2) partial equitable indemnity; (3) declaratory relief; (4) equitable indemnity-liability of parents and guardians; and (5) relief under Education Code section 48904 (a)(1).

On August 14, 2024, Cross-Defendants filed their answer to the cross-complaint.

On November 13, 2025, the Court granted LAUSD's motion for summary judgment as to Birkner's FAC.

On December 2, 2025, the Court entered judgment in favor of LAUSD and against Birkner.

On February 4, 2026, Birkner filed his second amended complaint against Defendants LAUSD and John Valencia d/b/a Valen Vending Company ("Valencia"), alleging: (1) negligence under Government Code section 835; and (2) negligence.

On February 20, 2026, Birkner filed his third amended complaint (the "TAC") against Defendant Valencia, alleging a single cause of action for negligence.

On May 12, 2026, LAUSD filed its motion for summary judgment or, alternatively, for summary adjudication of issues in the cross-complaint.

On July 21, 2026, LAUSD filed its notice of Birkner's non-opposition to the motion for summary judgment/summary adjudication.

On July 22, 2026, Birkner filed his opposition brief.

On July 24, 2026, LAUSD filed its reply brief.

On July 31, 2026, the Court denied Birkner's motion to reclassify this case as a limited civil action.

As of 5:00 P.M. on August 3, 2026, nothing further had been filed in this matter by any party.

B. RULING

None. Instead, the Court will hear argument specifically on what evidence LAUSD submitted to establish that it met its burden. In particular, the Court wants to hear from LAUSD about what prior Court findings were "necessarily" established in order to apply issue preclusion or collateral estoppel, as well as what evidence it submitted in addition to the prior ruling.

C. LEGAL STANDARD

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."¿ Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c (c).¿ Courts "liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party."¿ Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.¿ However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment as a matter of law.¿ Code Civ. Proc., § 437c (c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.

RULINGS ON OBJECTIONS TO EVIDENCE

LAUSD objects to evidence submitted by Birkner in opposition to the motion. Except as follows, the objections are not ruled upon, as, within the context of Avritt's Declaration, they are not material to the Court's decision. To the extent anything in Avritt's Declaration is material, the Court sustains each and every objection that is based on an improper legal conclusion, sustains each and every objection that is based on relevance and sustains each and every objection that is based on speculation and relevance. The Court further adopts its prior rulings related to the same Declaration that was presented in relation to LAUSD's earlier motion for summary judgment.

E. DISCUSSION

LAUSD moves for summary judgment or, alternatively, for summary adjudication of issues in the FAC.

1. The Court will not reject Birkner's opposition brief or deny the motion on procedural grounds.

LAUSD argues the Court should reject Birkner's opposition brief because it was untimely filed. While LAUSD is correct that Birkner's opposition brief filed on July 22, 2026, was untimely (see Code Civ. Proc., § 437c (b)(2): opposition to summary judgment due 20 days before hearing), the Court elects to overlook this defect and evaluate the motion on its merits.

The Court notes that Birkner failed to submit a separate statement of new material facts in support of his opposition brief. Again, the Court elects to overlook this defect and evaluate the motion on its merits.

2. Allegations in the FAC

Birkner's complaint states that on July 9, 2023, he was attending school at John A. Sutter Middle School, which is owned and operated by LAUSD. Birkner pleads that when he returned to the school after hours, he encountered dangerous

and inviting conditions. Birkner pleads the dangerous and inviting conditions constituted a substantial risk of injury to children on school property doing school related activities. Birkner pleads the dangerous conditions were in an area owned, controlled, and maintained by LAUSD. (FAC, ¶¶ 9-10.)

Birkner pleads the school vending machine “was caged, which made it inviting to students, like Plaintiff, to climb and gain access to the School’s roof, thereby constituting a significant danger to young, curious school children near, around or otherwise encountering it.” Birkner pleads “the School’s roof, in the area near (and above) the vending machine, was made up of faulty, unsecured plexiglass.” Birkner pleads, “The caged vending machine encouraged Plaintiff to climb it and gain access to the School’s roof; once Plaintiff made it onto the roof, he proceeded to walk over the unsecured, ill-maintained plexiglass, which then shattered, caused Plaintiff to fall through and injure himself.” (FAC, ¶ 9.)

3. Allegations in the Cross-Complaint

LAUSD pleads that on July 9, 2023, Birkner, a minor, went to John A. Sutter Middle School after hours, climbed a caged vending machine to get onto the roof, and fell through a plexiglass skylight. LAUSD pleads Birkner injured himself and damaged school property. LAUSD denies any responsibility. (Cross-Complaint, ¶¶ 4-5, 16.)

LAUSD pleads that Birkner’s own reckless conduct in breaking onto the roof caused his injuries. LAUSD alleges Birkner’s family should have to cover LAUSD’s losses. LAUSD alleges that because Parham was Birkner’s parent and had custody and control of Birkner at the time, Parham is legally responsible under Civil Code section 1714.1. LAUSD wants Parham to share responsibility for damages that LAUSD pays because of Birkner’s actions. (Cross-Complaint, ¶¶ 6-20.)

LAUSD cites Education Code section 48904 (a)(1), which makes parents

liable when their child willfully damages school property or injures someone at school up to a capped dollar amount. LAUSD asks the Court to hold Birkner and Parham liable for the maximum amount allowed under that law. (Cross-Complaint, ¶¶ 21-26.)

4.

LAUSD's Submitted Evidence

LAUSD submits the following evidence in support of its motion:

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Copies of pleadings, orders, and a judgment entered in this case (Exhs. 1-4);

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A copy of LAUSD's offer of dismissal in exchange for a waiver of costs and Birkner's rejection thereof (Exh. 5);

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Excerpts from Birkner's deposition transcript (Exh. 6); and

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The declaration of Julio Martinez and attached exhibit addressing the costs of repairing damage to the school.

LAUSD's submitted evidence shows:

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Birkner sued LAUSD.

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Parham is Birkner's mother and guardian ad litem.

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On November 13, 2025, the court granted LAUSD's motion for summary judgment and entered a judgment in

favor of LAUSD and against Birkner.

(SUMF
#1-4, 7.)

LAUSD says that because of Birkner's trespass, LAUSD needed to repair the broken skylight, which cost \$3,813.33. On March 4, 2026, LAUSD offered to dismiss its cross-complaint against Birkner in exchange for a waiver of LAUSD's defense costs. Birkner rejected the offer on March 6, 2026. (SUMF #5-6.)

5.
LAUSD's burden

LAUSD moves for summary judgment of its claims in the cross-complaint: (1) total equitable indemnity; (2) partial equitable indemnity; (3) declaratory relief; (4) equitable indemnity-liability of parents and guardians; and (5) relief under Education Code section 48904 (a)(1).

The thrust of LAUSD's motion is that its submitted evidence bars relitigating the issue of Birkner's negligence. Specifically, LAUSD cites the Court's order granting its motion for summary judgment as to the FAC as grounds for finding that the Court has already litigated issues surrounding Birkner's negligence.

LAUSD cites the following portions of the Court's prior order granting LAUSD's motion for summary judgment as to the FAC as supporting its position that issues regarding Birkner's trespass and negligence have already been litigated:

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"Like the student in Bartell, Plaintiff was on school grounds 'on his own volition and for his own amusement.' Bartell, supra, 83 Cal.App.3d at p. 499." (Minute Order dated November 13, 2025, p. 11, ¶ 2.)

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“Plaintiff knew the school was a closed campus.”

(Minute Order dated November 13, 2025, p. 11, ¶ 1.)

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“The negligence in this case is attributable to the Plaintiff for making unreasonable decisions in knowingly trespassing, in accessing the roof using vending machine that had never been similarly used in 15 years, and in walking across a glass skylight. It is not the school district, but rather the Plaintiff who is at fault for this unfortunate incident. But for Plaintiff’s unreasonable (and unlawful) actions, Plaintiff would not have suffered injuries. No reasonable jury could find otherwise.” (Minute Order dated November 13, 2025, p. 15, ¶ 3.)

The doctrine of collateral estoppel bars relitigating issues actually litigated and necessarily decided in prior proceedings (*Lucido v. Superior Court* 51 Cal.3d 335, 341 (1990)). Five elements must be met: identical issue, actually litigated, necessarily decided, final decision on the merits, same party against whom preclusion is sought.

The problem with LAUSD’s motion is that, with the exception of negligence, it does not appear anything was necessarily decided previously by this Court. And then it appears that LAUSD did not submit separate evidence supporting its cross-complaint. So, for instance, no evidence, other than the prior order, was presented that Birker’s conduct was “willful.” Nor was evidence that an act was “intentional.” Without such evidence, LAUSD did not meet its initial burden on all of its causes of action. (On Reply, LAUSD references various evidence it purportedly submitted on that issue; the Court would like LAUSD to point it to where that evidence was provided as part of the initial motion.)

If LAUSD is able to point the Court to evidence, the Court will then address Birker’s Opposition and LAUSD’s Reply.

DATED: August
5, 2026

Lee S. Arian

Judge of the Superior Court